



United States and United Kingdom: Comparative Recent Developments in Environmental Law

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United States and United Kingdom: Comparative Recent Developments in Environmental Law

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SUMMARY This report summarizes recent environmental law developments in the United Kingdom and the United States. In both jurisdictions, environmental law refers to the area of law concerning environmental protection. In general, environmental law focuses on the main areas of clean air, clean water, the conservation of species, and the preservation of natural resources. This report addresses clean air and water as well as aspects of national environmental governance and international environmental cooperation in each country.

I. Introduction

The United States (US) Constitution establishes a federal system of governance in which a legal relationship and distribution of powers exists between the federal government and the state governments.¹ Legislation and regulations may be implemented at the federal and state level to ensure the protection of the environment. This report discusses legislative developments, regulatory developments, and court rulings from the three branches of the federal government.

The most notable pieces of relevant federal legislation are the National Environmental Policy Act (NEPA),² which establishes the broad national framework for protecting the environment, the Clean Air Act (CAA),³ which governs air pollution, and the Federal Water Pollution Control Act—also known as the Clean Water Act (CWA),⁴ which is the principal law governing water pollution. It should be noted that the federal government has one primary agency that specializes in the protection of the environment, the US Environmental Protection Agency (EPA).

While the US has a federal system of governance, the United Kingdom (UK) is a constitutional monarchy with a parliament that has devolved certain areas of the law to Wales, Scotland and Northern Ireland. In previous years, the UK was a member of the European Union (EU). This meant that, where the EU had been given authority via treaties, EU law had supremacy over the law of the UK. This report discusses the aftermath of the UK's exit from the EU and its

¹ U.S. Const. art. I §§ 8-9, <https://perma.cc/J9V2-XL39>.

² National Environmental Policy Act of 1969 (NEPA), 42 U.S.C. § 4321, <https://perma.cc/9F3J-UTJF>.

³ Clean Air Act (CAA), 42 U.S.C. 7401, <https://perma.cc/WG2S-Y5RH>.

⁴ Clean Water Act (CWA), 33 U.S.C. § 1251, <https://perma.cc/3FVQ-KQZ4>.

implementation of the Environment Act 2021, which enshrines a new framework to protect the environment.⁵

The Environment Act 2021 possesses similarities to the US's CAA and CWA, as it also implements laws to protect the areas of air and water quality.⁶ The Environment Act 2021 also created the Office for Environmental Protection, similar to the US EPA, which will ensure that the UK government is held to account on environmental obligations.⁷

Recent collaboration between the US and the UK on protecting the environment is discussed in Part II.C below.

II. US Environmental Laws

Since the 1960s, modern US environmental laws have transformed the extent to which the environment has been afforded protection. As noted in Part I above, these include NEPA, CAA, and CWA.

NEPA was one of the first laws to establish a broad national framework for protecting the environment.⁸ Title I of NEPA contains a Declaration of National Environmental Policy, which requires the federal government to use all practicable means to create and maintain conditions under which humans and nature can exist in productive harmony.⁹ Section 102 requires all federal agencies to incorporate environmental considerations in their planning and decision making by preparing detailed statements assessing the environmental impact of, and alternatives to, federal actions.¹⁰ Title II of NEPA established the President's Council on Environmental Quality to oversee NEPA's implementation.¹¹

Initially titled the Air Pollution Control Act, the CAA was the first federal legislation involving air pollution.¹² The CAA was designed by Congress to protect human health and the environment from emissions that pollute ambient or outdoor air.¹³ The CAA requires the EPA to establish national ambient air quality standards for certain common and widespread pollutants based on the latest science.¹⁴ Congress established much of the CAA's basic structure in 1970 and made major revisions in 1977 and 1990. Congress has amended the CAA since 1990.

⁵ Environment Act 2021, c. 30, <https://perma.cc/4NXG-DA5F>.

⁶ *Id.* pts. 4-5.

⁷ *Id.* § 11(1-2).

⁸ *Summary of the National Environmental Policy Act*, EPA (Sept. 28, 2021), <https://perma.cc/49LE-3NZ8>.

⁹ National Environment Act of 1969 § 101.

¹⁰ *Id.* § 102.

¹¹ *Id.* §§ 204-209.

¹² *Clean Air Act Requirements and History*, EPA (Aug. 10, 2022), <https://perma.cc/892X-2YXW>.

¹³ *Id.*

¹⁴ CAA §§ 7408-7410.

The CWA is the principal law governing the basic structure for regulating discharges of pollutants into the waters of the United States and quality standards for surface waters.¹⁵ It was originally enacted in 1948 and significantly amended in 1972. The 1972 amendments created ambitious programs for water quality improvement that have since been expanded via regulations. Congress has also made amendments to the CWA since 1972.

A. Air Quality Legal Developments

The CAA regulates air emissions from stationary and mobile sources. The law authorizes the EPA to regulate power plants by setting a “standard of performance” for their emission of certain pollutants into the air.¹⁶ This “standard of performance” may be different for new or existing power plants, but in each case, it must reflect the “best system of emission reduction” (BSER) that the agency has determined to be “adequately demonstrated” for the particular category of power plant.¹⁷

Since the passage of the CAA, the EPA has exercised its authority by setting performance standards based on measures that would reduce pollution by causing plants to operate more cleanly.¹⁸ Specifically, the CAA establishes three main regulatory programs to control air pollution from stationary sources such as power plants. The programs are the New Source Performance Program under section 111,¹⁹ the National Ambient Air Quality Standards (NAAQS),²⁰ and the Hazardous Air Pollutants program (HAP).²¹

The New Source Performance Standard program of section 111 directs the EPA to list categories of stationary sources that it determines cause or significantly contribute to air pollution that may reasonably be anticipated to “endanger public health or welfare.” Section 111(b) focuses on promulgating, for each category, federal standards of performance for new sources. Section 111(d), often referred to as the “gap filler,” authorizes the regulation of certain pollutants from existing sources.²²

Under Section 111(d), once the EPA has set new source standards addressing emissions of a particular pollutant under section 111(b),²³ it must then address emissions of that same pollutant

¹⁵ *Summary of the Clean Water Act*, EPA (July 6, 2022), <https://perma.cc/7CPC-3MYZ>.

¹⁶ CAA § 7411.

¹⁷ *Id.* §§ 7411(a)(1), (b)(1), (d).

¹⁸ *W. Va. v. EPA*, 142 S. Ct. 2587, 2599 (2022), <https://perma.cc/AH3D-MVCQ>.

¹⁹ CAA, § 7411.

²⁰ *Id.* §§ 7408–7410.

²¹ *Id.* §§ 102, 7412.

²² *W. Va. v. EPA*, 142 S. Ct. at 2610.

²³ Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units, 80 Fed. Reg. 64711 (Oct. 23, 2015), <https://perma.cc/833P-8GRX> [hereinafter Carbon Pollution Emission Guidelines].

by existing sources, but only if they are not already regulated under the NAAQS or HAP programs.²⁴

The NAAQS program addresses air pollutants that may reasonably be anticipated to endanger public health and welfare resulting from numerous or diverse mobile or stationary sources.²⁵ The EPA establishes a standard for each pollutant that represents the “maximum airborne concentration of the pollutant that public health can tolerate.”²⁶ The HAP program targets pollutants, other than those covered by NAAQS, which represent a threat of adverse human effects, including substances known or anticipated to be “acutely or chronically toxic.”²⁷ The EPA here directly requires all sources to reduce their emissions to a certain level.

In 2015, the EPA issued the Clean Power Plan (CPP),²⁸ which established emission guidelines for states to follow in limiting carbon dioxide emissions from existing power plants. The CPP was based on the conclusion that the “best system of emission reduction” for existing coal-fired power plants includes a requirement that such facilities either reduce their own production of electricity or subsidize increased generation by natural gas, wind, or solar sources.²⁹ This change from higher-emitting to lower-emitting producers of electricity is referred to as “generation shifting.”³⁰ For authority, the agency cited section 111 of the CAA.

1. *West Virginia v. EPA*

In 2016, parties challenging the CPP in the US Court of Appeals for the District of Columbia Circuit (D.C. Circuit) successfully petitioned the US Supreme Court for a stay of enforcement of the rule while the merits of the case were considered by the lower court.³¹ Although the D.C. Circuit heard arguments, it did not issue a decision before a change in presidential administrations.

In 2019, the EPA repealed the CPP, concluding it did not have authority to issue generation-shifting measures because, under the “major questions doctrine,” it lacked a clear statement from the US Congress delegating authority to regulate a fundamental sector of the economy. Instead, it issued the Affordable Clean Energy (ACE) rule, which required a combination of equipment upgrades and improved operating practices but would lead to only minor reductions of carbon dioxide emissions.³²

²⁴ CAA § 7411(d)(1).

²⁵ CAA § 7408(a)(1).

²⁶ *W. Va. v. EPA*, 142 S. Ct. at 2600.

²⁷ CAA § 7412(b)(2).

²⁸ Carbon Pollution Emission Guidelines at 64677.

²⁹ *W. Va. v. EPA*, 142 S. Ct. at 2599.

³⁰ *Id.* at 2627.

³¹ *W. Va. v. EPA*, 577 U.S. 1126 (2016).

³² News Release, EPA Press Office, EPA Finalizes Affordable Clean Energy Rule, Ensuring Reliable, Diversified Energy Resources while Protecting our Environment (June 19, 2019), <https://perma.cc/2EKZ-U82X>.

Several parties challenged the repeal and replacement of the CPP in the D.C. Circuit, and other parties defending the repeal intervened. That court determined that the EPA's repeal of the CPP rested on the mistaken reading of the CAA, finding to the contrary that generation shifting can be a system of emission reduction under section 111, and that the major questions doctrine does not apply. It vacated the repeal and replacement of the CPP and remanded to the agency for further consideration.³³

The parties defending the repeal of the Clean Power Plan petitioned the Supreme Court for certiorari, which granted the petitions and consolidated the cases in *West Virginia v. EPA*.³⁴

In a 6:3 decision authored by Chief Justice John Roberts, the Supreme Court held that, although capping carbon dioxide emissions at a level that forces a nationwide transition away from coal to generate electricity may be sensible to solve the climate crisis, it is not plausible that Congress gave the EPA the authority to adopt on its own such a regulatory scheme under section 111.³⁵ A “decision of such magnitude and consequence” rests with Congress itself or an agency under its clear delegation, Roberts wrote.³⁶

Relying on the major questions doctrine, the majority opinion stated, “[T]here are extraordinary cases . . . in which the history and the breadth of the authority that the agency has asserted and the economic and political significance of that assertion, provide a reason to hesitate before concluding that Congress meant to confer such authority.”³⁷

Before 2015, the opinion noted, the EPA had always set emissions limits under section 111 based on the application of measures that would reduce pollution by causing the regulated source to operate more cleanly.³⁸ It had never devised a cap by looking to a “system” that would reduce pollution simply by “shifting” polluting activity “from dirtier to cleaner sources.”³⁹ The EPA acknowledged that understanding areas such as electricity transmission requires policy or technical expertise not traditionally needed in EPA regulatory development, but asserted that Congress had tasked it alone under section 111(d) to decide how Americans get their energy.⁴⁰ The Court said it had “little reason” to presume Congress would task the EPA with such decisions when it has no comparative expertise.⁴¹

³³ *Am. Lung Ass'n v. EPA*, 985 F.3d 914 (D.C. Cir. 2021), <https://perma.cc/78TP-WSSP>.

³⁴ *W. Va. v. EPA*, 142 S. Ct. at 2599.

³⁵ *Id.* at 2616.

³⁶ *Id.*

³⁷ *Id.* at 2608.

³⁸ *Id.* at 2610.

³⁹ *Id.*

⁴⁰ *Id.* at 2612.

⁴¹ *Id.*

2. Other Recent Air Quality Legal Developments

A bill “to require the Administrator of the EPA to revise certain ethylene oxide emissions standards under the Clean Air Act” has been introduced in the US Senate.⁴² A similar bill has been introduced in the US House of Representatives.⁴³ Specifically, if enacted, either bill’s provisions would require that regulations be revised based on results from the National Center for Environmental Assessment report titled *Evaluation of the Inhalation Carcinogenicity of Ethylene Oxide*.⁴⁴

B. Water Quality Legal Developments

1. Definition of the “Waters of the United States” Under the CWA

The 1972 amendments to the CWA established federal jurisdiction over “navigable waters,” defined in the act as the “waters of the United States, including the territorial seas.”⁴⁵ The CWA does not define “waters of the United States”; rather, it provides discretion to the EPA and the US Army Corps of Engineers (Corps) to define “waters of the United States” in regulations.

2. US Supreme Court Decisions on “Waters of the United States” Before 2022

Three US Supreme Court decisions before 2022 addressed the definition and scope of “waters of the United States.” In 1985, the Court in *United States v. Riverside Bayview Homes, Inc.*,⁴⁶ deferred to the US Army Corps of Engineers’ assertion that CWA jurisdiction extended to certain wetlands that were adjacent to other jurisdictional waters because they were “inseparably bound up” with navigable waters. In 2001, the Court in *Solid Waste Agency of Northern Cook County v. U.S. Army Corps of Engineers* rejected the Corps’ claim of federal jurisdiction over non-navigable and isolated ponds as lacking sufficient connection to traditional navigable waters.⁴⁷

The Court most recently interpreted the term “waters of the United States” in *Rapanos v. United States* in 2006.⁴⁸ A four-justice plurality opinion articulated by Justice Antonin Scalia held that the term “navigable waters” under the CWA includes only relatively permanent or flowing bodies of water, not intermittent or ephemeral flows of water.⁴⁹ Additionally, only those wetlands with a continuous surface connection to bodies that are waters of the United States in their own right

⁴² S. 1903, 117th Cong. (2021), <https://perma.cc/83C6-KDW2>.

⁴³ H.R. 3631, 117th Cong. (2021), <https://perma.cc/6PE2-QXGG>.

⁴⁴ EPA, EPA/635/R-16/350F, *Evaluation of the Inhalation Carcinogenicity of Ethylene Oxide (Final Report)* (2016), <https://perma.cc/E4TM-KX7K>.

⁴⁵ CWA § 1362(7).

⁴⁶ *United States v. Riverside Bayview Homes, Inc.*, 474 U.S. 121 (1985), <https://perma.cc/2VJ4-AQ47>.

⁴⁷ *Solid Waste Agency of N. Cook Cnty. v. U.S. Army Corps of Engineers*, 531 U.S. 159 (2001), <https://perma.cc/4FFS-2HB8>.

⁴⁸ *Rapanos v. United States*, 547 U.S. 715 (2006), <https://perma.cc/C6QP-WSGZ>.

⁴⁸ *Id.*

⁴⁹ *Id.*

or are adjacent to such waters are covered by the CWA.⁵⁰ However, Justice Anthony Kennedy's opinion concurring in the judgment found that, to constitute "navigable waters" under the CWA, a water or wetland must possess a "significant nexus" to waters that are navigable in fact or could reasonably be so made.⁵¹ Justice Kennedy also stated that a significant nexus exists when a wetland "either alone or in connection with similarly situated lands in the region, significantly impacts the chemical, physical, and biological integrity" of a traditionally navigable water.⁵²

Following *Rapanos*, lower courts have had to consider whether the definition of "waters of the United States" in the plurality opinion or the concurring opinion should apply.⁵³

3. Executive Branch Initiatives to Redefine "Waters of the United States"

In 2015, the EPA and the Corps (hereinafter "the agencies") adopted the Clean Water Rule,⁵⁴ revising "the existing definition of 'waters of the United States' consistent with the CWA, science, the agencies' technical expertise and experience, and Supreme Court decisions."⁵⁵

On June 9, 2021, the agencies announced their intent to revise the definition of "waters of the United States" to better protect the "nation's vital water resources that support public health, environmental protection, agricultural activity, and economic growth."⁵⁶ The EPA highlighted the necessity of revisions after reviewing the Navigable Waters Protection Rule (NWPR)⁵⁷ as directed by President Joseph R. Biden Jr.⁵⁸ Specifically, EPA Administrator Michael S. Regan stated, "the EPA and Department of the Army have determined that this rule is leading to significant environmental degradation."⁵⁹

On August 30, 2021, the US District Court for the District of Arizona issued an order vacating and remanding the NWPR in the case of *Pascua Yaqui Tribe v. U.S. Environmental Protection Agency*.⁶⁰

⁵⁰ Id. at 717.

⁵¹ Id. at 779-80.

⁵² Id.

⁵³ Kevin M. Lewis, Cong. Rsch. Serv., LSB10113, *What Happens When Five Supreme Court Justices Can't Agree?* (June 4, 2018), <https://perma.cc/WJ7E-ALJR>.

⁵⁴ Clean Water Rule, 33 C.F.R. § 328.3 (2016), <https://perma.cc/KH8N-S9K3>.

⁵⁵ Clean Water Rule: Definition of "Waters of the United States," 80 Fed. Reg. 37,054 (June 29, 2015), <https://perma.cc/QHT4-HXMF>.

⁵⁶ Press Release, EPA, EPA, Army Announce Intent to Revise Definition of WOTUS (June 9, 2021), <https://perma.cc/4HRP-LB9E>.

⁵⁷ The Navigable Waters Protection Rule: Definition of "Waters of the United States," 85 Fed. Reg. 22250 (June 22, 2020), <https://perma.cc/S2EE-BX4B>.

⁵⁸ Exec. Order No. 13990, 86 Fed. Reg. 7037 (Jan. 20, 2021), <https://perma.cc/7BBL-ZY44>.

⁵⁹ Press Release, EPA, *supra* note 56.

⁶⁰ *Pascua Yaqui Tribe v. EPA*, 557 F. Supp. 3d 949 (D. Ariz. 2021), appeal dismissed sub nom. *Pasqua Yaqui Tribe v. EPA*, No. 21-16791 (9th Cir. Feb. 3, 2022), <https://perma.cc/5AYM-DAZR>.

In light of this order, the agencies halted implementation of the NWPR nationwide and interpreted “waters of the United States” consistent with the pre-2015 regulatory regime.⁶¹

On November 18, 2021, the agencies announced the signing of the proposed rule, and on December 7, 2021, the rule was published in the Federal Register.⁶² The process to revise the definition of “waters of the United States” includes two rulemakings: a foundational rule to restore longstanding protections and an anticipated second rule that builds on the regulatory foundation.⁶³

When revising the definition of “waters of the United States” the agencies propose to reinstate the longstanding 1986 regulation defining “waters of the United States,” which will be updated via amendments to reflect US Supreme Court decisions.⁶⁴ It is asserted that this familiar approach would support a stable implementation of “waters of the United States” while the agencies continue to consult with states, tribes, local governments, and a broad array of stakeholders on both the current implementation and future regulatory actions. The public comment period on the proposed rule closed on February 7, 2022.⁶⁵

Specifically, the EPA and the Corps propose to interpret the term “waters of the United States” to include

traditional navigable waters, interstate waters, and the territorial seas, and their adjacent wetlands; most impoundments of “waters of the United States”; tributaries to traditional navigable waters, interstate waters, the territorial seas, and impoundments, that meet either the relatively permanent standard or the significant nexus standard; wetlands adjacent to impoundments and tributaries, that meet either the relatively permanent standard or the significant nexus standard; and “other waters” that meet either the relatively permanent standard or the significant nexus standard.⁶⁶

Most recently, on February 24, 2022, the agencies announced the selection of 10 roundtables that highlight geographical differences and a range of perspectives, including agricultural and environmental organizations and communities with environmental justice concerns.⁶⁷

On January 24, 2022, the US Supreme Court granted certiorari in part to the petitioners in *Sackett v. EPA*,⁶⁸ limited to resolving the issue of whether the US Court of Appeals for the Ninth Circuit

⁶¹ *Final Rule: The Navigable Waters Protection Rule*, EPA (Sept. 3, 2021), <https://perma.cc/4GFF-79BD>.

⁶² *Revising the Definition of “Waters of the United States,”* EPA (July 12, 2022), <https://perma.cc/ZF8Z-MCC4>.

⁶³ *Id.*

⁶⁴ *Revised Definition of “Waters of the United States,”* 86 Fed. Reg. 69372, 69385 (Dec. 7, 2021), <https://perma.cc/9J7P-CN57>.

⁶⁵ *Revising the Definition of “Waters of the United States,”* EPA, *supra* note 62.

⁶⁶ 86 Fed. Reg. at 69385.

⁶⁷ *Public Outreach and Stakeholder Engagement Activities*, EPA (June 28, 2022), <https://perma.cc/SY3H-DYKE>.

⁶⁸ *Petition for Certiorari, Sackett v. EPA*, No. 19-35469 (S. Ct. Sept. 22, 2021), <https://perma.cc/5L5A-CEW2>.

set forth the proper test for determining whether wetlands are “waters of the United States” under the CWA.⁶⁹

In *Sackett*, the petitioners purchased a soggy residential lot near Idaho’s Priest Lake in 2004. After preparing the lot for construction, they received an administration compliance order from the EPA stating that the property was subject to wetland protection under the CWA and that the property must be restored to its natural state. Subsequently, the landowners sued, contending the EPA’s jurisdiction does not extend to their property.⁷⁰

The Ninth Circuit held there was substantial evidence to support the EPA’s conclusions that the lot contained wetlands sharing a significant nexus with the lake. Although the landowners sought to rely on Justice Scalia’s plurality opinion,⁷¹ the Ninth Circuit Court’s holding rested on its prior decision in *Northern California River Watch v. City of Healdsburg*, which held Justice Kennedy’s concurrence was the controlling rule of law.⁷² Therefore, applying Justice Kennedy’s ruling, the court was satisfied with the EPA’s conclusion, as the record showed the wetlands on the landowner’s property were adjacent to a jurisdictional tributary and, together with the similarly situated Kalispell Bay Fen, possessed a significant nexus to Priest Lake, a traditional navigable water.⁷³

The Congressional Research Service has noted that the EPA’s recent proposed rule to redefine the definition of “waters of the United States” may be affected by the ruling in *Sackett*, depending on its time or scope. Therefore, the holding in *Sackett* has the potential to affect how the agencies will shape their regulations.⁷⁴

C. US International Environmental Cooperation

1. Rejoining the Paris Agreement

On April 22, 2016, the US committed to a legally binding international treaty, the Paris Agreement.⁷⁵ The agreement aims to ensure that signatories commit to and participate in the global response to climate change. This includes holding the increase in the global average temperature to well below 2°C above pre-industrial levels and limiting the temperature increase to 1.5°C above pre-industrial levels.⁷⁶

⁶⁹ *Sackett v. EPA*, 8 F.4th 1075 (9th Cir. 2021), cert. granted in part, 142 S. Ct. 896 (2022).

⁷⁰ *Sackett*, 8 F.4th at 1079.

⁷¹ *Id.* at 1088.

⁷² *Northern California River Watch v. City of Healdsburg*, 496 F.3d 993 (9th Cir. 2007), <https://perma.cc/9H9Q-2X5V>.

⁷³ *Sackett*, 8 F.4th at 1092.

⁷⁴ Kate R. Bowers, Cong. Rsch. Serv., LSB10707, *Supreme Court Revisits Scope of “Waters of the United States” (WOTUS) Under the Clean Water Act* (2022), <https://perma.cc/X2YB-8J7R>.

⁷⁵ Paris Agreement to the United Nations Framework Convention on Climate Change, Dec. 12, 2015, T.I.A.S. No. 16-1104 (entered into force Nov. 4, 2016), <https://perma.cc/79V7-JCCA>.

⁷⁶ *Id.* art. 2.

On June 1, 2017, then-President Donald J. Trump made the decision to withdraw the US from the Paris Agreement, asserting that pledges made under the agreement imposed an unfair economic burden on American workers, businesses, and taxpayers.⁷⁷ Following this decision, the US faced pressure from the international community, including during a United Nations Human Rights Council periodic review in 2020.⁷⁸ However, on January 20, 2021, just hours after being sworn in, President Biden announced that the US would rejoin the Paris Agreement.⁷⁹ In keeping with the Paris Agreement, the US has issued its Nationally Determined Contribution to Reduce Greenhouse Gases.⁸⁰

2. *The Illegal, Unreported, and Unregulated Fishing Alliance*

President Biden has described illegal, unreported, and unregulated (IUU) fishing and related harmful fishing practices as being among “the greatest threats to ocean health” and a significant cause of global overfishing.⁸¹ The president stated that, left unchecked, IUU fishing and associated labor abuses undermine US economic competitiveness, national security, fisheries sustainability, and the livelihoods and human rights of fishers around the world and will exacerbate the environmental and socioeconomic effects of climate change.⁸²

Consequently, on June 27, 2022, Biden signed a National Security Memorandum (NSM) to address IUU fishing and related harmful fishing practices.⁸³ The NSM directs the launch of an IUU Fishing Action Alliance that will include the US, UK, and Canada.⁸⁴ The IUU Fishing Action Alliance is aimed at increasing ambition and momentum in the fight against IUU fishing, including a pledge to take urgent action to improve the monitoring, control, and surveillance of fisheries; increase transparency in fishing fleets and the seafood market; and build new partnerships that will hold bad actors accountable.⁸⁵

⁷⁷ Press Statement, Secretary of State Michael R. Pompeo, On the U.S. Withdrawal from the Paris Agreement (Nov. 4, 2019), <https://perma.cc/MJE6-DTDX>.

⁷⁸ U.N. Human Rights Council, Thirty-Sixth Session, *Report of the Working Group of the Universal Periodic Review: United States of America*, ¶¶ 26.64-65, 26.77, & 26.150-152, U.N. Doc. A/HRC/46/15 (Dec. 15, 2020), <https://perma.cc/859P-8PG6>.

⁷⁹ Statement on Acceptance of the Paris Climate Agreement, 2021 Daily Comp. Pres. Doc. 49 (Jan. 20, 2021), <https://perma.cc/P8VX-NPH5>.

⁸⁰ U.N. Climate Change, UNFCCC N.D.C. Registry (Interim) 1, *United States of America, Nationally Determined Contribution: Reduced Greenhouse Gases in the United States: A 2030 Emissions Target* (Apr. 22, 2021), <https://perma.cc/2YLR-8G3S>.

⁸¹ Memorandum on Combating Illegal, Unreported, and Unregulated Fishing and Associated Labor Abuses, 2022 Daily Comp. Pres. Doc. 566 (June 27, 2022), at 1, <https://perma.cc/X4PX-BDNW>.

⁸² *Id.*

⁸³ *Id.*

⁸⁴ Fact Sheet, White House Briefing Room, President Biden Signs National Security Memorandum to Combat Illegal, Unreported, Unregulated Fishing and Associated Labor Abuses (June 27, 2022), <https://perma.cc/RL2N-QRC8>.

⁸⁵ *Id.*

3. *Collaboration Between the UK and the US on Air Quality Research.*

A research collaboration on air quality between the UK and US has been initiated in recognition of the health, welfare, and economic impacts of atmospheric pollution and, in particular, the problems from ground-level ozone, fine particles, acid deposition, global climate change, eutrophication, mercury, and other toxic air contaminants.⁸⁶ The bodies included in the research collaboration are the EPA and the UK Department for Environment, Food and Rural Affairs as well as the Environment Agency for England and Wales.⁸⁷

The goal of the collaboration is to coordinate air quality research efforts and develop high quality scientific products and modeling tools that will support sound environmental policy decisions in the US and the UK.⁸⁸ The collaboration also allows each nation to improve its scientific understanding of the nature and magnitude of the problem of airborne pollution and its consequences.⁸⁹

In particular, the collaboration proposes research on exposure science in environmental and public health decision-making to improve its use in regulatory applications.⁹⁰ Moreover, the collaboration proposes the development, evaluation, and application of air quality modeling tools with an emphasis on a community multi-scale air quality model to aid environmental decision making.⁹¹ The bodies will meet once a year to review the research accomplished and plan for future activities to conduct collaborative scientific research.⁹²

III. Recent United Kingdom Environmental Law Developments

A. Effect of Withdrawal from the European Union

The term “Brexit,” short for “British Exit,” refers to the UK’s withdrawal of its membership in the EU.

Prior to the UK’s exit from the EU, a significant proportion of environmental legislation in the UK originated from EU law or was required to comply with EU legislation. Following the 2016 EU referendum, the UK voted to leave the EU and triggered the withdrawal process under article 50 of the Treaty of the European Union (TEU). Article 50 of the TEU provides the mechanism necessary for the withdrawal of a country from the EU.⁹³ The current impact of the UK’s final exit from the EU on January 1, 2021, regarding the development of environmental law means that

⁸⁶ *Collaboration with the United Kingdom on Air Quality Research*, EPA (Sept. 9, 2022), <https://perma.cc/2HMW-X3MD>.

⁸⁷ *Id.*

⁸⁸ *Id.*

⁸⁹ *Intent to Collaborate*, EPA (Oct. 7, 2008), <https://perma.cc/8DWH-EHYC>.

⁹⁰ *Id.*

⁹¹ *Id.*

⁹² *Id.*

⁹³ Treaty of the European Union, art. 50, July 29, 1992, O.J. (C 191), <https://perma.cc/3DAK-Q6JE>.

rather than EU law having supremacy over UK authorities, the UK's Parliament is now free to amend or repeal any environmental law it chooses.⁹⁴

B. The Environment Act 2021

On November 9, 2021, following a long approval process in the UK's Parliament (hereinafter Parliament), the Environment Act 2021 gained royal assent.⁹⁵ Described by former Environment Secretary George Eustice as delivering the "most ambitious environmental programme of any country on earth," the Environment Act 2021 is intended to operate as a new framework to enhance and protect the environment.⁹⁶

Following "Brexit," environmental protections were a subject of concern, since EU laws no longer applied, however, in the UK/EU Trade and Cooperation Agreement, a part of BREXIT negotiations, required the UK to maintain a level of environmental protections equivalent to the protections in force on December 31, 2020.⁹⁷ New legislation relating to environmental areas such as water and clean air needed to be established. In approving the Environment Act 2021, environmental protections became enshrined into law, and the legislation provides for the creation of new powers.⁹⁸ The Environment Act 2021 has eight sections. Specifically, parts 1 and 2 concern environmental protections, while parts 3 through 7 concern waste and resource efficiency, air quality, water, nature and biodiversity, and conservation covenants. Part 8 includes miscellaneous provisions such as chemical regulation.

This report focuses on the act's key features concerning environmental governance, water, and air quality.

C. Environmental Governance

1. Environmental Targets

Part 1 of the Environment Act 2021 includes the creation of legally binding environmental targets.

a. Long-Term Targets

The Environment Act 2021 stipulates that the secretary of State may create regulations to set long-term targets relating to any matters concerning the natural environment or people's enjoyment

⁹⁴ Dep't for Exiting the European Union, *Information About the UK Leaving the EU*, Gov.uk (Mar. 1, 2017) <https://www.gov.uk/government/news/information-about-the-uk-leaving-the-eu>.

⁹⁵ Environment Act 2021 c. 30. The Environmental Act 2021 applies differently across the different regions of the United Kingdom; some parts apply to England and Wales, others to Northern Ireland, and some to Scotland. This report focuses only on those provisions applicable to England.

⁹⁶ Press Release, Dep't. of Env't., Food & Rural Aff. et al., World-leading Environment Act Becomes Law (Nov. 10, 2022), <https://www.gov.uk/government/news/world-leading-environment-act-becomes-law>.

⁹⁷ Trade and Cooperation Agreement between the European Union and the European Atomic Energy Community, of the one part, and the United Kingdom of Great Britain and Northern Ireland, of the other part, 2021 O.J. (L 149) 10. <https://perma.cc/LG7R-LZD8>.

⁹⁸ Id.

of the natural environment.⁹⁹ The secretary must set long-term targets regarding at least one matter within each “priority area.”¹⁰⁰ For the purposes of the act, the phrase “priority areas” refers to air quality, water, biodiversity as well as resource efficiency, and waste reduction.¹⁰¹ “Long-term” for the purposes of the Environment Act 2021 is no less than 15 years after the date on which the target was initially set.¹⁰²

b. Specialized Targets

Other targets in the Environment Act 2021 relate to particulate matter and species abundance.

According to the Environment Act 2021, the secretary of State must set targets by regulations with respect to the annual mean amount of PM 2.5 in ambient air.¹⁰³ “PM 2.5” for the purposes of the act is specified as particulate matter with an aerodynamic diameter not exceeding 2.5 micrometers.¹⁰⁴ The particulate matter target is in addition to the long-term priority area targets; therefore, the long-term target for air quality should not be neglected.¹⁰⁵

The secretary of State must also set targets by regulation regarding the abundance of species.¹⁰⁶ December 31, 2021, was the deadline for the release of this target under the act.¹⁰⁷ The species abundance target is not a long-term target and is in addition to the long-term priority area target for biodiversity.¹⁰⁸

c. Other Provisions

A draft of a statutory instrument containing each of the priority area targets, PM 2.5 targets, and species abundance target must be laid before Parliament by October 31, 2022.¹⁰⁹

The secretary of State must also review the targets set.¹¹⁰ The purpose of review is to consider whether the “significant improvement test” has been fulfilled.¹¹¹ To satisfy this test, it must be

⁹⁹ Environment Act 2021 § 1(1).

¹⁰⁰ Id. § 1(2).

¹⁰¹ Id. § 1(3).

¹⁰² Id. § 1(6).

¹⁰³ Id. § 2(1).

¹⁰⁴ Id. § 2(3).

¹⁰⁵ Id. § 2(5).

¹⁰⁶ Id. § 3(1).

¹⁰⁷ Id. § 3(2).

¹⁰⁸ Id. § 3(3).

¹⁰⁹ Id. § 5.

¹¹⁰ Id. § 7(1).

¹¹¹ Id. § 7(2).

shown that the targets set would significantly improve the natural environment in England to satisfy the “significant improvement test.”¹¹²

After conducting the review, the secretary of State must publish and submit a report to Parliament regarding whether significant improvements have occurred, whether the “significant improvement test” has been met, and if not, what steps will be taken to ensure this test is met.¹¹³ The first review deadline is January 31, 2023.¹¹⁴

2. *Environmental Improvement Plans*

Part 1 of the Environment Act 2021 specifies that the secretary of State must prepare an environmental improvement plan covering a period of no less than 15 years and sets out how the UK government will significantly improve the natural environment during the plan’s timeframe.¹¹⁵ The environment improvement plan must also include how the UK government intends to improve people’s enjoyment of the natural environment.¹¹⁶

The UK government published the document titled “A Green Future: Our 25-Year Plan to Improve the Environment” on January 11, 2018. This document is to be treated as the UK’s current and first environmental protection plan.¹¹⁷ Specifically, this environmental improvement plan sets out the government’s policy focus on six key areas, including “using and managing land sustainably” as well as outlining its 25-year goals such as clean air.¹¹⁸

The secretary of State must review the current environmental improvement plan by January 31, 2023.¹¹⁹ All reviews of the environment improvement plan must be revised by the secretary of State to set at least one interim target in respect to each relevant matter.¹²⁰

3. *Creation of the Office for Environmental Protection*

The Office for Environmental Protection (OEP) is a new public body created under the Environment Act 2021.¹²¹ As the EU previously held the UK to account on environmental matters, creation of the OEP was necessary following Brexit to ensure that the UK government and public

¹¹² Id. § 7(3). The definition of “England” for the purposes of this section of the act is found in § 7(9).

¹¹³ Id. § 7(4).

¹¹⁴ Id. § 7(5).

¹¹⁵ Id. § 8(3-4).

¹¹⁶ Id. § 8(5).

¹¹⁷ Id. § 8(7-8).

¹¹⁸ HM Government, *A Green Future: Our 25 Year Plan to Improve the Environment* (Jan. 11, 2018), <https://perma.cc/7KVB-Y58Q>.

¹¹⁹ Environment Act 2021 § 10(3).

¹²⁰ Id. § 11(1-2).

¹²¹ Id. § 22.

bodies continue to be held to account on their environmental obligations and to guarantee environmental measures are enforced.

The Environment Act stipulates that the principal objective of the OEP in exercising its functions is to contribute to environmental protection and the improvement of the natural environment.¹²² Specifically, the OEP must act objectively, impartially, and with regard to the need to act proportionally and transparently.¹²³

The OEP must prepare a strategy that, among other specifications, includes how it intends to exercise its functions,¹²⁴ how it intends to further its principal objective, and how it will act objectively and impartially.¹²⁵ The OEP must arrange for its strategy to be laid before Parliament and published.¹²⁶

D. Water

Part 5 of the Environment Act 2021 relates to water and establishes new duties for individuals such as the secretary of State and sewerage undertakers. This report focuses on the key features of the Environment Act's storm overflows and water quality provisions.

1. Storm Overflows

The Environment Act 2021 amends part 4 of the Water Industry Act 1991 on sewerage services by inserting a new chapter, chapter 4, on storm overflows.¹²⁷

a. Storm Overflow Discharge Reduction Plan

Section 141A of chapter 4 stipulates that the secretary of State must prepare a storm overflow discharge reduction plan (SODRP).¹²⁸ The SODRP must focus on reducing discharges from storm overflows of sewerage undertakers whose area is wholly or mainly in England.¹²⁹ "Reducing discharges" refers to reducing the frequency, duration, and volume of discharges.¹³⁰ In addition, the SODRP must focus on the reduction of the discharge's adverse impact.¹³¹ "Adverse impact" refers to reducing the negative impact of storm overflow discharges upon the environment and

¹²² Id. § 23(1).

¹²³ Id. § 23(2).

¹²⁴ Id. § 23(3).

¹²⁵ Id. § 23(4).

¹²⁶ Id. § 24(1).

¹²⁷ Environment Act 2021, c. 30, § 80 (inserting ch. 4, § 141A into pt. VI of the Water Industry Act 1991, c. 56, <https://perma.cc/KM6P-WCBA>).

¹²⁸ Water Industry Act 1991, pt. IV, ch. 4 § 141A(1), <https://perma.cc/A8DQ-VYSS>.

¹²⁹ Id.

¹³⁰ Id. § 141A(2).

¹³¹ Id. § 141A(1).

public health.¹³² The SODRP may include proposals that relate to reducing the need for discharge by storm overflow, treating sewage that is discharged from storm overflows, monitoring water into which the storm overflow discharges, and obtaining information about storm overflows.¹³³ The secretary of State must consult multiple bodies when preparing the SODRP, including the Environment Agency and Natural England.¹³⁴ Most notably, the secretary of State must publish the SODRP before September 1, 2022, and lay it before Parliament once completed.¹³⁵

b. Progress Reports on Storm Overflow Discharge Reduction Plan

Section 141B of chapter 4 specifies that the secretary of State must publish progress reports relating to the SODRP.¹³⁶ Each progress report must contain the secretary's assessment of progress made in implementing proposals during the report's time frame and the effect that progress had on the SODRP's focuses.¹³⁷ The first progress report must relate to the three years following Section 141A's publication,¹³⁸ and it must be laid before Parliament once published.¹³⁹

c. Environment Agency Reports and Annual Reports on Discharges from Storm Overflows

Sections 141C and 141D of chapter 4 provide that the Environment Agency as well as the sewerage undertaker whose area is wholly or mainly England must publish annual reports in relation to the undertaker's storm overflows.¹⁴⁰

The Environment Agency report must specify the location of storm overflows, the watercourse, body of water or underground strata into which the storm discharges as well as the frequency and duration of discharges from the storm overflow to which the period of the report relates.¹⁴¹ The report must also specify, when the information is available, the volume of discharge during the report's set time period.¹⁴² This report must be published before April 1 in the year after the calendar year to which it relates or in such a manner as the Environmental Agency sees fit.¹⁴³

The specifications in sewerage undertakers' reports are the same as those in Environmental Agency reports. However, they have an additional specification to include information on any

¹³² Id. § 141A(3).

¹³³ Id. § 141A(4).

¹³⁴ Id. § 141A(5).

¹³⁵ Id. § 141A(6).

¹³⁶ Id. § 141B(1).

¹³⁷ Id. § 141B(2).

¹³⁸ Id. § 141B(3).

¹³⁹ Id. § 141B(6).

¹⁴⁰ Id. §§ 141C-D.

¹⁴¹ Id. § 141D(2).

¹⁴² Id.

¹⁴³ Id. § 141B(4).

investigations that have taken place or improvement works undertaken to improve storm overflow during the report period.¹⁴⁴ The storm overflow annual report must relate to successive calendar years, starting in 2021, and be published by the sewerage undertaker before April 1 in the year after the calendar year to which it relates.¹⁴⁵ In addition, the Environment Act 2021 specifically requires that the annual storm overflow report conducted by the sewerage undertaker be in a form accessible and understandable to the public.¹⁴⁶

d. Report on Elimination of Discharges from Storm Overflow

The secretary of State must prepare a report on actions needed to eliminate discharges from the storm overflows of sewerage undertakers whose area is mainly England along with the cost and benefit of those actions.¹⁴⁷ The secretary must publish this report before September 1, 2022, and lay the report before Parliament once published.¹⁴⁸

2. *Water Quality: Powers of the Secretary of State*

Part 5, section 89 of the Environment Act 2021 states that the secretary of State may, by regulations, amend or modify legislation to make provisions about substances to be considered in assessing the chemical status of surface water or groundwater.¹⁴⁹ The secretary of State may also amend regulations to specify standards in relation to those substances or in relation to the chemical status of surface water or groundwater.¹⁵⁰

Legislation for the purpose of this section includes:

- The Water Environment (Water Framework Directive) (England and Wales) Regulations 2017.¹⁵¹
- The Water Environment (Water Framework Directive) (Northumbria River Basin District) Regulations 2003.¹⁵²

¹⁴⁴ Id. § 141C(2).

¹⁴⁵ Id. § 141C(4).

¹⁴⁶ Id. § 141C(5).

¹⁴⁷ Environment Act 2021, c. 30, § 84(1).

¹⁴⁸ Id. § 84(2-3).

¹⁴⁹ Id. § 89(1).

¹⁵⁰ Id.

¹⁵¹ Water Environment (Water Directive) (England and Wales) Regulations 2017, S.I. 2017/407, <https://perma.cc/9AMX-MQEU>.

¹⁵² Water Environment (Water Directive) (Northumbria River Basin District) 2003, S.I. 2003/3245, <https://perma.cc/72TK-SFZF>.

- The Water Environment (Water Framework Directive) (Solway Tweed River Basin District) Regulations 2004.¹⁵³

Before making regulations, the secretary of State must consult authorities depending on the individuals affected by the regulation. For instance, if the regulation applies to England, the Environment Agency must be consulted.¹⁵⁴

Welsh ministers and the Northern Ireland department receive powers identical to those of the secretary of State.¹⁵⁵ The only difference concerns with whom they must consult before making regulations. For instance, Welsh ministers must consult the natural resources body for Wales, among other authorities.¹⁵⁶

E. Air Quality

Part 4 of the Environment Act 2021 concerns Air Quality and the powers of the secretary of State. This report discusses the key features of the environmental recall of motor vehicles and other developments within this legal area.

1. *Environmental Recall of Motor Vehicles*

Section 74 of the Environment Act 2021 stipulates that the secretary of State may, by regulation, make provisions for, about, or connected to the recall of “relevant products” that do not meet “relevant environmental standards.”¹⁵⁷

“Relevant product” refers to a product specified by the regulations.¹⁵⁸ Only the following types of vehicles may be specified or described in regulations:

- (a) a mechanically propelled vehicle;
- (b) a part of a mechanically propelled vehicle;
- (c) an engine that is, or forms part of, machinery that is transportable (including by way of self-propulsion);
- (d) a part of such an engine, or any other part of such machinery that is connected with the operation of the engine.¹⁵⁹

¹⁵³ Water Environment (Water Framework Directive) (Solway Tweed River Basin District) 2004, S.I. 2004/99, <https://perma.cc/4DM3-HQLJ>. See Section 89(2) of the Environment Act 2021 for the full list of legislation.

¹⁵⁴ Environment Act 2021 § 89(6).

¹⁵⁵ *Id.* §§ 90-91.

¹⁵⁶ *Id.* § 90(4).

¹⁵⁷ *Id.* § 74(1).

¹⁵⁸ *Id.* § 74(2).

¹⁵⁹ *Id.* § 74(3).

A “relevant environmental standard” means a standard that, by virtue of any enactment, a relevant product must meet, is relevant to the environmental impact of the product, and is specified in the regulations.¹⁶⁰

2. *Compulsory Recall Notices*

A compulsory recall notice is a notice requiring the recipient to organize the return of the relevant product to specified persons.¹⁶¹ The secretary of State must have reasonable grounds for believing the product does not meet the relevant environmental standards when issuing the notice.¹⁶²

The regulations may provide that, where a relevant product forms part of another product, a compulsory recall notice can require the return of the other product.¹⁶³ The regulations may also provide that a compulsory recall notice impose supplementary requirements on its recipients.¹⁶⁴ Examples of supplementary requirements include

- ensuring that at least a specified proportion of products subject to a compulsory recall notice that are manufactured or distributed by the recipient are returned in accordance with the notice,
- publicizing a compulsory recall notice, and
- providing information to the secretary of State.¹⁶⁵

The secretary of State may, when authorized by regulation, issue the recipient of a compulsory recall notice a further notice imposing supplementary requirements on the recipient.¹⁶⁶

3. *Further Provisions to Note*

Regulations under section 74(1) may impose a duty on a manufacturer or distributor of a relevant product to notify the secretary of State if the person has reason to consider that the product does not meet a relevant environmental standard.¹⁶⁷

Section 76(4) stipulates that the regulations may confer powers on the enforcement authority to enter the premises of a manufacturer or distributor of a relevant product and take documents, records, and samples of the product found there.¹⁶⁸

¹⁶⁰ Id. § 74(4).

¹⁶¹ Id. § 75(2).

¹⁶² Id. § 75(3).

¹⁶³ Id. § 75(4).

¹⁶⁴ Id. § 75(5).

¹⁶⁵ Id. § 75(7).

¹⁶⁶ Id. § 75(6).

¹⁶⁷ Id. § 76(1).

¹⁶⁸ Id. § 76(4).

4. Other Air Quality Legal Developments

The Clean Air (Human Rights) Bill has been introduced in the House of Lords, which is currently reviewing it. This bill, if passed, would establish the right to breathe clean air and would require the secretary of State to achieve and maintain clean air in England and Wales.¹⁶⁹

¹⁶⁹ Clean Air (Human Rights) Bill 2022, H.L. Bill [5], <https://perma.cc/2Q73-AZZG>.